

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: _____
Date Filed: _____

WILLIAM TOWNSEND,

Plaintiff designates
Kings County

Plaintiff,

The basis of Venue is
CPLR §504

-against-

S U M M O N S

THE CITY OF NEW YORK and DET. KENNETH JUART,

Plaintiff resides at:
1345 E. 99th Street
Brooklyn, NY 11236

Defendants.

County of Kings

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or if the Complaint is not served with the Summons, to serve a Notice of Appearance on the plaintiff's attorneys within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: September 26, 2020


REINGOLD & TUCKER
Attorneys for Plaintiff
26 Court Street
Brooklyn, New York 11242
(718) 875-4805

Addresses of Defendants:

The City of New York
100 Church Street
New York, NY 10007

Det. Kenneth Juart
211 Union Avenue
Brooklyn, NY 11211

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

WILLIAM TOWNSEND,

Plaintiff,

-against-

THE CITY OF NEW YORK and DET. KENNETH
JUART,

Defendants.

Index No.:

COMPLAINT

Plaintiff, WILLIAM TOWNSEND, by his attorneys, Reingold & Tucker, as and for his complaint, respectfully alleges, upon information and belief, as follows:

1. Plaintiff WILLIAM TOWNSEND is at all times hereinafter mentioned a resident of the County of Kings, City and State of New York.

2. Defendant THE CITY OF NEW YORK is and still is at all times hereinafter mentioned a Municipal Corporation organized and existing by virtue of the laws of the State of New York.

3. Plaintiff has complied with the statutes herein in that they have filed a notices of claim with defendants within ninety (90) days of the date the claim herein accrued, and that more than thirty (30) days have elapsed since the presentation of said notice of claim and defendant has neglected or refused to adjust or make payment on said claims.

4. Plaintiff appeared for an oral examination pursuant to General Municipal Law § 50-h.

5. This action has been commenced within one (1) year and ninety (90) days of the date plaintiff's causes of action herein accrued.

6. Defendant DET. KENNETH JUART is employed by defendant NYC as a police officer with the New York City Police Department.

7. On October 17, 2019 at approximately 7:45am, at 211 Union Ave, Brooklyn, New

York, plaintiff was assaulted and battered by defendant's police officer and was unlawfully and illegally physically seized and detained by police officers under the employ of defendant NYC and while acting in the course of their employment with the New York City Police Department.

8. Defendants arrested and imprisoned plaintiff by detaining, handcuffing and arresting him at 211 Union Ave, Brooklyn, New York, and charged him with murder in the second degree under indictment number 6423-2019 (CR-037799-19KN) for the death of Anthony Santana based upon video surveillance footage and without more evidence.

AS AND FOR A FIRST CAUSE OF ACTION: FALSE ARREST/IMPRISONMENT

9. Defendants arrested and imprisoned plaintiff by detaining, handcuffing and arresting him at 211 Union Ave, Brooklyn, New York, and charged him with murder in the second degree under indictment number 6423-2019 (CR-037799-19KN) for the death of Anthony Santana based upon video surveillance footage and without more evidence.

10. Defendant did not possess a warrant for said detainment, handcuffing, arresting and imprisonment of plaintiff.

11. Defendant intentionally arrested and imprisoned plaintiff.

12. Defendant used excessive force in detaining and arresting plaintiff.

13. Defendant did not have the right to detain, arrest and imprison plaintiff.

14. Defendant did not have probable cause to detain, arrest and imprison plaintiff since there was no evidence that showed plaintiff committed the crime that he was charged with.

15. Plaintiff did not consent to said detainment, arrest and imprisonment.

16. Plaintiff was conscious of said detainment, arrest and imprisonment.

17. Defendant did not otherwise possess a privilege to detain, arrest and imprison plaintiff.

18. As a result of said arrest and imprisonment, plaintiff suffered injuries including, but not limited to, loss of freedom and liberty, psychological, mental and emotional trauma, shame embarrassment and suffering as well as personal and public humiliation, which may require medical attention as well as damages for future medical and legal expenses and lost wages, all to plaintiff's damage.

19. As a result of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION: ASSAULT/BATTERY

20. Plaintiff incorporates paragraphs 1 - 19, inclusive above by reference as if set forth fully herein.

21. Defendant assaulted and battered plaintiff by intentionally touching, pushing plaintiff and otherwise offensively touching, handcuffing and searching plaintiff.

22. Plaintiff did not consent to being assaulted and battered.

23. As a result of said assault and battery, plaintiff sustained injuries including, but not limited to, loss of freedom and liberty, physical injury, psychological, mental and emotional trauma, shame embarrassment and suffering as well as personal and public humiliation as well as damages for future medical and legal expenses and lost wages, all to plaintiff's damage.

24. As a result of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION: 42 U.S.C. § 1983

25. Plaintiff incorporates paragraphs 1 - 24, inclusive above by reference as if set forth fully herein.

26. Defendants violated plaintiff's civil rights pursuant to 42 U.S.C. § 1983 by

arresting and instituting a policy and pattern of a quota system for arresting individuals including plaintiff resulting in stopping, searching and arresting individuals including plaintiff without probable cause to do so and/or arresting individuals including plaintiff for false violations in order to meet a NYPD arrest quota.

27. Defendant JUART violated plaintiff's civil rights pursuant to 42 U.S.C. § 1983 by arresting plaintiff for a crime that the evidence, including, but not limited to, the videotape, showed that plaintiff did not commit a crime.

28. Said Supreme/Criminal court action against plaintiff ended in favor of the plaintiff by the Court dismissing with prejudice all charges against plaintiff.

29. As a result of said defendants' violations of 42 U.S.C. § 1983, plaintiff suffered injuries including, but not limited to, loss of freedom and liberty, psychological, mental and emotional trauma, shame embarrassment and suffering as well as personal and public humiliation as well as damages for future medical and legal expenses and lost wages, all to plaintiff's damage.

30. As a result of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

31. Plaintiff incorporates paragraphs 1 - 30, inclusive above by reference as if set forth fully herein.

32. Defendant maliciously prosecuted plaintiff by commencing or continuing the criminal proceeding against plaintiff under indictment number 6423-2019 (CR-037799-19KN).

33. Said criminal charges were brought by defendants knowing the absence of probable cause and by defendants instituting the criminal proceeding with actual malice by signing the criminal court complaint under the penalty of perjury, but knowing that its contents were false.

34. Said Supreme/Criminal court action against plaintiff ended in favor of the plaintiff by the Court dismissing, with prejudice, all charges against plaintiff.

35. As a result of defendant's conduct, plaintiff suffered multiple personal injuries including loss of liberty and freedom, personal and public humiliation and shame, psychological trauma and severe emotional distress and damages for future medical and legal expenses and lost wages, all to plaintiff's damage.

36. As a result of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION: CONSTITUTIONAL VIOLATIONS

37. Plaintiff incorporates paragraphs 1 - 36, inclusive above by reference as if set forth fully herein.

38. Defendants arrested and imprisoned plaintiff by detaining and seizing him, handcuffing plaintiff and placing him in cell operated by the defendant and/or its governmental agency the New York City Police Department.

39. Defendant did not possess a warrant for said arrest and imprisonment of plaintiff.

40. Defendant did not have probable cause to arrest and imprison plaintiff.

41. Plaintiff did not consent said arrest and imprisonment.

42. Plaintiff was conscious of said arrest and imprisonment.

43. Defendant did not otherwise possess a privilege to arrest and imprison plaintiff.

44. Said Supreme/Criminal court action against plaintiff ended in favor of the plaintiff by the Court dismissing with prejudice all charges against plaintiff.

45. Defendant violated plaintiff's constitutional rights under the U.S. Constitution, Bill of Rights and the New York State Constitution.

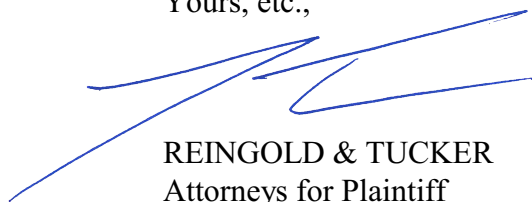
46. As a result of said arrest and imprisonment, plaintiff suffered injuries including, but not limited to, loss of freedom and liberty, psychological, mental and emotional trauma, shame embarrassment and suffering as well as personal and public humiliation, which may require medical attention as well as damages for future medical and legal expenses and lost wages, all to plaintiff's damage.

47. As a result of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against defendants The City of New York and Det. Kenneth Juart on the First, Second, Third, Fourth and Fifth Causes of Action in sums that exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction, for the costs of this action and for punitive damages.

Dated: Brooklyn, New York
September 25, 2020

Yours, etc.,



REINGOLD & TUCKER
Attorneys for Plaintiff
26 Court Street
Brooklyn, New York 11242